

An In-Depth Analysis of Core Processes and Components in Construction Payroll

Foundational Framework of Construction Payroll

The successful execution of construction payroll is predicated on a meticulously established foundational framework. This initial setup phase is not merely administrative; it represents a critical risk management function where errors can have significant and cascading legal and financial consequences. Before the first hour of labor is processed, a series of compliance-driven steps must be completed to establish the business as a legitimate employer and create a data architecture capable of handling the industry's complexities.

Initial Business and Employee Onboarding: The Compliance Bedrock

The first step for any construction business is to secure the necessary legal identifiers from government agencies. This begins at the federal level with the application for an Employer Identification Number (EIN) by completing Form SS-4. The EIN is the business's unique federal tax identifier, analogous to an individual's Social Security Number, and is required for filing all payroll tax reports.¹ This federal requirement is immediately supplemented by state and, in some cases, local obligations. Businesses must obtain separate tax ID numbers for state income tax withholding and state unemployment insurance (SUI) tax purposes, a step that introduces the challenge of multi-jurisdictional compliance from the outset.¹

Simultaneously, a rigorous process for collecting essential employee documentation must be implemented. This includes:

- **Form I-9, Employment Eligibility Verification:** A mandatory federal document used to verify the identity and legal authorization to work for all paid employees in the United States.¹
- **Form W-4, Employee's Withholding Certificate:** This IRS form is crucial for determining the correct amount of federal income tax (FIT) to withhold from an employee's compensation. Failure to collect a completed W-4 requires the employer to withhold at a default single-filer status, which may not be advantageous for the employee.¹

- **State Withholding Certificates:** Mirroring the federal W-4, many states with income tax require their own specific withholding forms, adding another layer of administrative responsibility.¹

Once collected, this information is translated into a digital employee profile within the payroll system. This record must capture core data such as the employee's full name, address, Social Security Number, and employment start date.¹ Critically for construction, the system must be configured to handle multiple pay rates for a single employee and manage direct deposit information, which may involve splitting payments across multiple bank accounts.³

Structuring the Payroll Calendar

The determination of a pay period—the frequency with which employees are paid—is a fundamental operational decision with significant regulatory oversight. While companies may choose from weekly, bi-weekly, semi-monthly, or monthly schedules, this choice is often constrained by state law. Many states have specific payday requirements for certain industries, including construction, making it imperative for employers to consult their state's department of labor before finalizing a payroll calendar.¹ Given the hourly nature of the workforce, weekly pay periods are a common standard in the industry.

Worker Classification: The Most Critical and High-Risk Decision

Arguably the most critical and high-risk decision in the foundational setup is the classification of workers. The legal distinction between an employee (who receives a Form W-2) and an independent contractor (who receives a Form 1099) is paramount, as it governs tax withholding obligations, overtime eligibility under the Fair Labor Standards Act (FLSA), and access to benefits.⁵ The determination hinges on factors established by the IRS and the Department of Labor (DOL), primarily focusing on the degree of behavioral and financial control the company exercises over the worker.⁵

Misclassifying an employee as an independent contractor, whether intentional or not, exposes a company to severe financial penalties. These can include liability for back employment taxes (both the employee's and employer's share of FICA and unemployment taxes), substantial interest, and other penalties.⁶ The magnitude of this risk is not theoretical. In one notable case, a national construction business was ordered to pay over \$1.7 million in worker restitution, more than \$1.1 million in civil penalties, and \$880,000 in attorneys' fees for

misclassification. Beyond the financial impact, such a ruling can force a complete and disruptive overhaul of a company's payroll and contracting practices.⁵ This underscores that the initial setup phase is far more than data entry; it is a series of high-stakes decisions that build a company's compliance shield. An error in classifying a single worker is not a minor administrative mistake but a strategic failure that can trigger catastrophic financial and operational consequences.

The End-to-End Payroll Processing Workflow

The construction payroll process is a cyclical, sequential workflow where the integrity of each stage is wholly dependent on the accuracy of the preceding one. This chain of processes transforms raw field data into compliant financial transactions, tax filings, and critical business intelligence. A failure at any point in this chain can corrupt every subsequent output.

Step 1: Time Data Collection and Verification

Accurate time tracking is the bedrock of the entire payroll process, as it is the primary input for calculating gross wages and allocating labor costs to projects.⁴ Inaccurate time data is consistently identified as the root cause of the most common and costly payroll errors.⁷

Historically, the industry relied on manual systems like paper timesheets and spreadsheets. These methods are notoriously prone to errors, manipulation, and simple inaccuracies, making them a significant liability.⁶ The modern standard is a shift toward digital timekeeping solutions. Mobile applications that function as punch clocks, often enhanced with geofencing to ensure an employee is physically on-site and photo verification to prevent "buddy punching," dramatically improve accuracy and reduce administrative overhead.⁶

For construction, the required data granularity goes beyond total hours worked. Time must be allocated to specific jobs using job codes and often to specific tasks within those jobs using cost codes (e.g., "electrical," "framing").¹¹ This detailed allocation is non-negotiable for effective job costing. Before this data enters the payroll system, it must pass through a multi-level approval workflow, typically from a field supervisor to a project manager and finally to the payroll administrator. This structured verification process ensures data integrity and prevents processing bottlenecks.⁶

Step 2: Gross Pay Calculation

The fundamental formula for gross pay is straightforward: Hours Worked multiplied by the corresponding Pay Rate.¹ However, in construction, this calculation is rarely simple. The two primary complicating factors are:

- **Overtime Calculation:** For non-exempt employees, the FLSA mandates overtime pay at 1.5 times the regular rate for all hours worked over 40 in a workweek.¹ State regulations can be even more stringent, and miscalculating overtime is the single leading cause of payroll errors, cited by nearly 39% of payroll professionals in one study.²
- **Variable Pay Rates:** It is common for a single construction worker to earn multiple different pay rates within the same pay period. The rate can change based on the specific task being performed (e.g., a higher rate for operating a crane versus a forklift), the job site location (due to prevailing wage laws), or the shift being worked (e.g., a differential for night or weekend work).⁵ A capable payroll system must seamlessly manage and apply these variable rates based on the coded time data.³

Step 3: Deductions and Withholdings

Once gross pay is calculated, a series of deductions are subtracted to determine the employee's net, or take-home, pay.¹ These deductions fall into three main categories:

- **Statutory Deductions:** These are withholdings mandated by law and include Federal Income Tax (FIT), State and Local Income Taxes (SIT), and Federal Insurance Contributions Act (FICA) taxes, which cover Social Security and Medicare.¹
- **Pre-Tax Voluntary Deductions:** These are amounts subtracted from gross pay before taxes are calculated, thereby reducing the employee's taxable income. Common examples include contributions to a 401(k) retirement plan and premiums for health insurance.¹
- **Post-Tax Deductions:** These are taken from an employee's pay after all taxes have been calculated. Examples include court-ordered wage garnishments for obligations like child support, as well as contributions to Roth 401(k) plans.¹
- **Pre-Tax Federal, Post-Tax State Deductions:** Some states require certain deductions to be treated as post-tax for state income tax purposes, even though they are pre-tax for federal income tax.
 - The most common deductions where this state-specific rule applies are:

- Dependent Care Flexible Spending Accounts (FSAs): While contributions are pre-tax at the federal level, some states require them to be included in your income for state tax calculations.
- Health Savings Accounts (HSAs): A few states require HSA contributions to be treated as post-tax for state income tax purposes. For example, California and New Jersey include HSA contributions in an employee's state taxable income.
- Why these differences exist
 - These discrepancies are typically a result of individual states having different tax laws regarding which types of income and benefits are taxable. While most states conform to the federal rules for pre-tax deductions like 401(k) contributions and health insurance premiums, a handful of states have specific laws that do not recognize the federal tax-advantaged status for certain accounts.

Step 4: Net Pay Calculation and Disbursement

The final calculation in the process is Net Pay, which equals Gross Pay minus all deductions.¹ This amount is then disbursed to the employee through one of two primary methods: direct deposit, which involves generating an Automated Clearing House (ACH) file for bank submission, or a traditional printed paycheck.¹

Regardless of the payment method, the employer must provide the employee with a detailed pay stub. This document, which can be physical or electronic, provides a transparent breakdown of the entire calculation, from gross earnings to all itemized deductions and the final net pay. Providing a pay stub is a legal requirement in most states.³

Step 5: Tax Remittance and Reporting

The employer's responsibility extends beyond paying the employee. They must act as a collection agent for the government, remitting all withheld employee taxes along with the employer's own share of payroll taxes. These employer-paid taxes include a matching contribution for FICA, Federal Unemployment Tax Act (FUTA) taxes, and State Unemployment Insurance (SUI) taxes.¹ These funds must be deposited with the appropriate federal, state, and local agencies according to a strict schedule; late payments result in significant penalties and

interest.⁷

In addition to remitting payments, employers must file regular reports. The most common are:

- **Form 941, Employer's Quarterly Federal Tax Return:** Filed quarterly to report federal income taxes and FICA taxes withheld from employees' pay, as well as the employer's share of FICA.³
- **Form W-2, Wage and Tax Statement:** An annual statement provided to each employee that summarizes their total earnings, taxes withheld, and other deductions for the year. This form is also filed with the Social Security Administration.³

Step 6: Record Retention and Auditing

Federal laws like the FLSA, along with various state regulations, mandate that employers securely store detailed payroll records for specified lengths of time, typically three to four years.¹ These records are essential for responding to audits or resolving disputes. As a best practice, companies should conduct regular internal audits of their payroll data to identify and correct discrepancies in hours, pay rates, or deductions before they escalate into more significant compliance issues.¹¹

The sequential nature of this workflow highlights a critical vulnerability: the entire process functions as a "chain of custody" for data integrity. An error introduced at the very beginning—inaccurate time collection—will inevitably corrupt every subsequent output. If the initial time data is flawed, the gross pay calculation will be wrong, leading directly to incorrect overtime pay. This, in turn, means any percentage-based deductions will be miscalculated, resulting in an incorrect net pay amount. Finally, these flawed wage and tax figures are reported on Forms 941 and W-2s, creating tax compliance liabilities. Simultaneously, the same erroneous labor data is fed into the job costing system, rendering project profitability analysis unreliable. Therefore, investing in robust, automated time-tracking systems is not an operational luxury but the single most effective risk mitigation strategy in the entire payroll workflow, as it inoculates the downstream process against its most common and damaging point of failure.

The Central Role of Job Costing in Construction Payroll

In the construction industry, payroll is not merely an administrative function for compensating employees; it is inextricably linked with job costing, a core accounting practice that distinguishes construction from nearly every other sector. This integration transforms the payroll department from a back-office cost center into a hub of real-time business intelligence that is vital for operational control and strategic decision-making.

Defining Job Costing: Project-Level Financial Scrutiny

Job costing is an accounting method that meticulously tracks, allocates, and analyzes all costs and revenues associated with a specific, individual project.¹⁶ Unlike general accounting, which provides a high-level financial overview of the entire company, job costing treats each project as its own distinct "profit center," offering a granular, micro-level view of its financial performance.¹² This allows contractors to monitor budgets, manage expenses, and accurately determine the profitability of each job.¹⁶

The Core Components of Job Costs

Expenses within a construction project are typically categorized into three main areas:

- **Direct Costs:** These are expenses that can be directly tied to a specific project. For payroll, the primary direct cost is the labor of field workers performing construction tasks.¹⁷
- **Indirect Costs:** These are expenses necessary to support a project but are not tied to a specific construction activity. The salary of a project manager overseeing a single job is a common example.¹⁷
- **Overhead Costs:** These are the general costs of running the business, such as office rent or administrative salaries, which are allocated across all active projects.¹⁶

Of these components, labor is generally the single largest and most variable expense for a construction business, often accounting for as much as 60% of total project costs. This makes the accurate tracking and allocation of labor costs paramount to a project's success.¹²

Integrating Payroll with Job Costing: The Data Symbiosis

The integration of payroll and job costing is a symbiotic relationship where payroll serves as the primary engine for generating critical project data. The process flows as follows:

1. **Time Data Coding:** The process begins in the field. When an employee tracks their time, they must assign those hours to a unique job code and, often, a more granular phase or cost code (e.g., Job 2024-01 > Phase: Electrical > Cost Code: Rough-In).¹¹
2. **Payroll as the Data Engine:** The payroll system processes these coded hours and calculates the direct wage cost. However, the true cost of labor extends beyond the wage.
3. **Allocating Labor Burden:** The payroll system calculates and adds the "labor burden" to the direct wage. This includes all additional employer-paid costs associated with that employee's time, such as the employer's share of FICA taxes, federal and state unemployment insurance (FUTA/SUI), and worker's compensation insurance premiums. This "fully burdened" rate represents the true cost of labor to the company.⁴
4. **Data Synchronization:** This fully burdened labor cost data is then synchronized from the payroll system to the job costing or accounting software. This integration is crucial, as it eliminates the need for manual double-entry and ensures data consistency across all business systems.¹⁰

This seamless flow of data provides project managers with real-time control over their budgets. Job cost reports can compare estimated labor costs against actual, up-to-the-minute labor costs as each payroll is processed.¹⁶ This allows for the early identification of cost overruns, enabling managers to take corrective action before a project's profitability is compromised. Furthermore, this historical data creates a powerful feedback loop, providing invaluable insights that improve the accuracy of estimates and bids for future projects.¹²

This deep integration reveals that the payroll department's output is far more than just paychecks; it is the most critical, time-sensitive operational data the company produces. Because labor is the largest and most volatile cost, the payroll system is the only function that captures, validates, and quantifies this cost in real time. This data is the "heartbeat" of the construction firm, providing the vital signs of each project's financial health.¹⁸ A slow, inaccurate, or non-integrated payroll system effectively blinds a company to its core operational performance, crippling its ability to make agile, data-driven decisions.

Navigating the Construction-Specific Compliance Landscape

Building upon the foundational payroll process, construction companies must navigate a landscape of advanced compliance requirements that are unique to the industry. These complexities are not universal but are layered based on the project type and labor agreements involved. Understanding these layers is essential for maintaining compliance and mitigating risk. The complexity can be categorized into four distinct tiers, each adding a new set of rules and reporting obligations.

The Four Tiers of Complexity

The following matrix provides a strategic overview of the construction compliance landscape. It illustrates how requirements for wages, benefits, and reporting become cumulative and more complex as a company moves from simple private work to government-funded union projects.

Payroll Scenario	Key Wage Rules	Key Benefit/Fringe Rules	Primary Compliance Reports
Non-Certified, Non-Union	FLSA/State Minimum Wage & OT	Standard company benefits (401k, Health)	Form 941, W-2
Non-Certified, Union	Collective Bargaining Agreement (CBA) rates	Union-defined fringe contributions	Union Remittance Reports, Form 941, W-2
Certified, Non-Union	Prevailing Wage Determinations	Prevailing Wage fringe rates (cash or bona fide plan)	Form WH-347 (or state equivalent), Form 941, W-2
Certified, Union	Higher of CBA or Prevailing Wage	Higher of CBA or Prevailing Wage	Form WH-347, Union Remittance Reports, Form 941, W-2

Tier 1: Base Complexity (Non-Certified, Non-Union Payroll)

This is the simplest scenario, covering private commercial or residential projects that use non-union labor. The primary compliance obligations are those outlined in the foundational framework: adherence to federal (FLSA) and state wage and hour laws for minimum wage and overtime, proper worker classification, and standard tax withholding and reporting (Forms 941 and W-2).³

Tier 2: Medium Complexity (Non-Certified, Union Payroll)

When a contractor employs union labor on a private project, a significant layer of complexity is added. The payroll system must manage the terms of one or more Collective Bargaining Agreements (CBAs).³ This involves:

- **Complex Wage and Overtime Rules:** CBAs typically specify unique wage rates based on job classification (e.g., Journeyman, Apprentice) and geographic zone. They also often contain overtime rules that are stricter than the FLSA, such as requiring double-time pay after a certain number of hours or for weekend work.³
- **Complex Fringe Benefit Contributions:** This is a major challenge. The system must calculate and track numerous employer contributions to various union trust funds, such as Health & Welfare, Pension, Annuity, and Training funds. These contributions can be based on diverse rules, including a fixed amount per hour worked or a percentage of gross wages.³
- **Union-Specific Reporting:** The key compliance document for this tier is the **Union Monthly Remittance Report**. This report details the hours worked by each employee and the corresponding contributions due to each specific union local, which are then remitted along with payment.³

Tier 3: High Complexity (Certified, Non-Union Payroll)

This tier applies to contractors working on government-funded projects that are subject to prevailing wage laws, such as the federal Davis-Bacon Act, but are using non-union labor.²

Compliance requires:

- **Managing Wage Determinations:** The payroll system must be able to import and manage official wage determinations for each project. These documents specify the minimum required base wage rate and an additional fringe benefit rate for every job classification in that specific locality.³
- **Fringe Benefit Calculation:** The employer must demonstrate that they are providing "bona fide" fringe benefits (e.g., health insurance, retirement contributions) that meet or exceed the required prevailing wage fringe rate. If the value of the employer's benefits falls short, the system must calculate the difference, which must then be paid directly to the employee as additional cash wages.³
- **Certified Payroll Reporting:** The primary compliance output is the weekly **Federal Form WH-347** (or a state-specific equivalent). This certified report is a sworn statement that the contractor has complied with prevailing wage laws. It requires a detailed weekly breakdown for each employee, including their job classification, hours worked, rates of pay, gross earnings, itemized deductions, and net pay.³

Tier 4: Very High Complexity (Certified, Union Payroll)

The most complex payroll scenario occurs on government-funded projects that use union labor. Here, the system must simultaneously manage the requirements of both the union's CBA and the project's prevailing wage determination.³

- **The "Higher Of" Logic:** For each component of compensation—both the cash wage and the fringe benefits—the system must compare the rate specified in the CBA to the rate required by the prevailing wage determination. The employee must then be paid the *higher* of the two rates for each component.³
- **Calculating "Top-Up" Payments:** If the total value of the union compensation package (wage plus fringe contributions) is less than the total value of the prevailing wage package, the system must calculate this shortfall and pay the difference (or "top-up") to the employee, typically as additional cash wages.³
- **Integrated Reporting:** In this scenario, the contractor is obligated to produce both the Union Remittance Reports (for the union) and the Certified Payroll Reports (for the government agency). The data across these two distinct reports must be consistent, accurate, and fully auditable to demonstrate compliance with both sets of regulations.³

Analysis of the Pay Stub as a Key Communication

Document

The pay stub, also known as a pay statement or pay slip, is the final, summarized output of the entire complex payroll process. It serves as a critical document for communication, transparency, and legal compliance, translating intricate calculations into a clear record for the employee. In the context of construction, where pay can vary significantly from one period to the next, a detailed and accurate pay stub is an indispensable tool for building trust and mitigating disputes.

The Anatomy of a Construction Pay Stub

A pay stub is the detailed record of an employee's compensation for a pay period; it is distinct from the paycheck, which is the actual payment.²⁰ While federal law under the FLSA requires employers to keep accurate wage records, it does not mandate the provision of pay stubs. However, the vast majority of states have laws requiring employers to furnish pay statements and often specify the information that must be included.¹³

A comprehensive construction pay stub deconstructs an employee's pay into its core components. The following table provides an annotated example illustrating how these components reflect the unique complexities of the industry.

Sample Line Item	Current Period	Annotation / Explanation
EARNINGS		
Regular Pay - Job 101 (Framing)	32.00 hrs @ \$30.00	Employee's base rate for standard framing work on a specific project.
Regular Pay - Job 102 (Crane Op)	8.00 hrs @ \$45.00	A different, higher pay rate for specialized, higher-risk work on a separate project within the same pay period.
Overtime Pay - Job 101	4.00 hrs @ \$45.00	Overtime hours calculated at 1.5 times the framing

		base rate (\$30.00 x 1.5).
PRE-TAX DEDUCTIONS		
Health Insurance	-\$75.00	Employee's share of the health insurance premium, deducted before taxes are calculated to reduce taxable income.
401(k)	-\$97.50	Employee's retirement contribution (e.g., 5% of Gross Pay), which also reduces taxable income.
TAXES		
Federal (FIT)	-\$150.00	Federal income tax withholding based on the employee's Form W-4 elections.
Social Security	-\$120.90	The employee's share of FICA tax, calculated as 6.2% of Gross Pay.
Medicare	-\$28.27	The employee's share of FICA tax, calculated as 1.45% of Gross Pay.
POST-TAX DEDUCTIONS		
Union Dues - Local 123	-\$25.00	Deduction for union membership fees, taken from pay after all taxes have been calculated.
NET PAY	\$1433.33	The final take-home pay after all earnings,

		deductions, and taxes have been accounted for.
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Legal Requirements and Strategic Importance

The strategic value of a well-designed pay stub extends far beyond mere compliance. It is a fundamental risk mitigation tool.

- **Transparency and Trust:** A clear, itemized pay stub provides complete transparency into how an employee's pay was calculated. This is the primary mechanism for an employee to verify they were paid correctly for all hours, at all applicable rates, and for all overtime earned. This transparency is foundational to building employee trust.¹³
- **Dispute Prevention:** In an industry defined by complex pay calculations, the pay stub serves as the first line of defense against wage and hour disputes. It provides a clear, contemporaneous record of the calculation, which can be used to resolve discrepancies before they escalate into formal complaints or legal action.¹³
- **Employee Morale and Retention:** Research indicates that payroll errors, such as late or inaccurate payments, are a significant driver of employee turnover. A consistent, accurate, and easy-to-understand pay stub is a key component of employee satisfaction and retention, demonstrating that the company values its workforce and is professionally managed.⁹

Recommendations for a Robust Payroll System

The unique and layered complexities of construction payroll demand a strategic approach to system selection and process management. Generic, one-size-fits-all solutions are inadequate and expose businesses to significant financial and legal risks. The following recommendations are derived from the preceding analysis and are intended to guide construction businesses toward establishing a robust, compliant, and efficient payroll function.

Prioritizing Digital Transformation and Integration

The single most impactful action a construction company can take to improve payroll accuracy and efficiency is to move away from manual processes. Reliance on paper timesheets and manual data entry is the primary source of costly errors, from incorrect time tracking to miscalculated overtime and flawed job cost data.⁴

Businesses should invest in an integrated ecosystem of digital tools. A modern, robust system should seamlessly connect time tracking, payroll processing, and job costing/accounting software (such as Sage 300 CRE or QuickBooks Enterprise).³ This integration creates a single source of truth for all labor data, eliminating redundant data entry, reducing the potential for error, and providing management with real-time visibility into labor costs as they are incurred. This allows for proactive project management rather than reactive financial reporting.¹¹

The Imperative of Specialization

Standard payroll software designed for stable, office-based environments is fundamentally ill-equipped to handle the dynamic realities of the construction industry. These generic systems typically lack the functionality to manage multiple pay rates per employee, complex union rules and fringe benefits, multi-state/multi-locality tax calculations, and certified payroll reporting.²

It is imperative that construction businesses select payroll software or outsource to a service provider that specializes in the construction industry. These specialized solutions are purpose-built to manage the industry's unique challenges. They come pre-configured to handle certified payroll reporting (Form WH-347), track and report on union agreements, and integrate seamlessly with construction-specific accounting and project management platforms. Choosing a specialist provider is not a luxury but a necessity for maintaining compliance and operational efficiency.¹⁰

Fostering a Culture of Compliance and Education

Technology alone is not a complete solution. A robust payroll system must be supported by a culture of compliance and a commitment to continuous education. The landscape of labor law is constantly evolving, with frequent changes to federal, state, and local regulations concerning minimum wage, overtime, worker classification, and paid leave.⁵

Companies must invest in regular training for all personnel involved in the payroll process, including payroll administrators, HR staff, project managers, and field supervisors who approve timecards.⁹ Furthermore, establishing clear, documented processes and communication channels for all payroll-related activities—from timecard submission and approval workflows to a clear procedure for resolving pay disputes—is essential for smooth and compliant operations.⁹

Ultimately, the selection of a payroll system transcends a simple IT or administrative decision; it is a core business strategy decision that directly impacts a construction company's profitability, scalability, and legal exposure. The capabilities of the chosen system determine which projects a company can competitively and compliantly bid on. A system that cannot handle certified payroll, for example, functionally bars a company from pursuing lucrative government contracts. A system that does not integrate with job costing prevents the company from accurately knowing whether it is making or losing money on its projects. Therefore, the investment in a specialized, integrated construction payroll system should be viewed not as an overhead cost, but as a strategic investment in risk management and a critical enabler of competitive advantage and sustainable growth.

Product Requirements Document(s)

- Tier 1 -  Product Requirements Document: Construction Payroll System (Tier 1)
- Tier 2 -  Product Requirements Document: Construction Payroll System (Tier 2)
- Tier 3 -  Product Requirements Document: Construction Payroll System (Tier 3)
- Tier 4 -  Product Requirements Document for Tier 4

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